

Amendment No. 2 to HB2422

White
Signature of Sponsor

AMEND Senate Bill No. 2317*

House Bill No. 2422

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 1, Part 6, is amended by adding the following as a new section:

49-1-616.

(a) The department of education shall implement a pilot program to evaluate whether administering fewer district- and state-mandated assessments results in students achieving greater academic success.

(b) By no later than July 1, 2026, the department shall select up to ten (10) LEAs to participate in the pilot program. To be eligible to participate in the pilot program, an LEA must, for the 2024-2025 school year, have:

(1) Received an "advancing" or "exemplary" district designation from the department of education;

(2) Demonstrated a proficiency rate for students in grades three through five (3-5) in the subjects of English language arts and mathematics that is greater than forty percent (40%); and

(3) Achieved a chronic absenteeism rate for the district that is below twenty percent (20%).

(c) If an LEA is selected to participate in the pilot program, then, notwithstanding another law to the contrary:

(1) Assessments for the 2027-2028 school year must be limited as described in subsections (d) and (e) for each student in any of the grades

kindergarten through eight (K-8) who achieves above the fortieth percentile on the universal reading screener and on the universal screener in mathematics that are administered to the student at the beginning of 2027-2028 school year; and

(2) Assessments for the 2028-2029 school year must be limited as described in subsections (d) and (e) for each student in any of the grades kindergarten through eight (K-8) who achieves above the fortieth percentile on the universal reading screener and on the universal screener in mathematics that are administered to the student at the beginning of 2028-2029 school year.

(d) Notwithstanding another law to the contrary, the department of education shall limit the state mandated assessments in the subjects of English language arts and mathematics for:

(1) A student described in subdivision (c)(1) by requiring no more than the following assessments to be administered in the 2027-2028 school year to any such student, as applicable:

(A) One (1) universal reading screener approved by the state board of education or one (1) Tennessee universal reading screener;

(B) One (1) universal screener in mathematics;

(C) One (1) Tennessee comprehensive assessment program (TCAP) test in the subject of English language arts; and

(D) One (1) TCAP test in the subject of mathematics; and

(2) A student described in subdivision (c)(2) by requiring no more than the following assessments to be administered in the 2028-2029 school year to any such student, as applicable:

(A) One (1) universal reading screener approved by the state board of education or one (1) Tennessee universal reading screener;

(B) One (1) universal screener in mathematics;

(C) One (1) Tennessee comprehensive assessment program (TCAP) test in the subject of English language arts; and

(D) One (1) TCAP test in the subject of mathematics.

(e) An LEA selected to participate in the pilot program shall limit the assessments mandated by the district in the subjects of English language arts and mathematics for:

(1) A student described in subdivision (c)(1) by requiring the following assessments to be administered in the 2027-2028 school year to any such student, as applicable:

(A)

(i) Two (2) benchmark assessments in the subject of English language arts;

(ii) Two (2) universal reading screeners approved by the state board of education, in addition to the screener required in subdivision (d)(1)(A); or

(iii) Two (2) Tennessee universal reading screeners, in addition to the screener required in subdivision (d)(1)(A); and

(B)

(i) Two (2) benchmark assessments in the subject of mathematics; or

(ii) Two (2) universal screeners in mathematics, in addition to the screener required in subdivision (d)(1)(B); and

(2) A student described in subdivision (c)(2) by requiring the following assessments to be administered in the 2028-2029 school year to any such student, as applicable:

(A)

(i) Two (2) benchmark assessments in the subject of English language arts;

(ii) Two (2) universal reading screeners approved by the state board of education, in addition to the screener required in subdivision (d)(2)(A); or

(iii) Two (2) Tennessee universal reading screeners, in addition to the screener required in subdivision (d)(2)(A); and
(B)

(i) Two (2) benchmark assessments in the subject of mathematics; or

(ii) Two (2) universal screeners in mathematics, in addition to the screener required in subdivision (d)(2)(B).

(f) Each LEA participating in the pilot program shall provide a report to a parent or legal guardian of a student in any of the grades kindergarten through three (K-3) who is being administered a limited number of state- and locally mandated assessments through the pilot program, describing the student's progress after the student is administered a universal reading screener approved by the state board of education or the Tennessee universal reading screener.

(g) An LEA participating in the pilot program shall submit the results of the assessments administered to students pursuant to subsection (e) to the department of education by no later than June 15, 2029.

(h) The department of education shall review the results of the assessments administered to students pursuant to this section and the results of the assessments administered to the same students in the immediately preceding school year to evaluate whether administering fewer district- and state-mandated assessments results in students achieving greater academic success. The department shall submit a report

detailing the findings of the review and evaluation required in this subsection (h) to the general assembly.

SECTION 2. Tennessee Code Annotated, Section 49-6-3115(a)(2)(A), is amended by adding the following as a new subdivision:

(vii) The student was administered a limited number of state-mandated assessments pursuant to § 49-1-616(d) as a third-grade student and the student demonstrates proficiency in ELA based on the student scoring within the fiftieth percentile on the most recently administered universal reading screener approved by the state board of education or the Tennessee universal reading screener; and

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.